

Judgment Sheet
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Criminal Appeal No.63502 of 2025
(Jaffar alias Zafar v. The State etc.)
and
Criminal Appeal No.66013 of 2025
(Ghulam Rasool v. The State etc.)
and
Criminal Revision No.7019 of 2026
(Hafiz Muhammad Ishaq v. Jaffar alias Zafar etc.)
and
Criminal PSLA No.7010 of 2026
(Hafiz Muhammad Ishaq v. Jaffar alias Zafar etc.)

JUDGMENT

Date of hearing: 11.06.2026

Appellants by: Mr. Javed Bashir, Advocate (for appellant-Jaffar alias Zafar in Crl.Appeal No.63502 of 2025), M/S Rafiq Ahmad Bhatti & Mahr Hassan Mahmood, Advocates (for appellant-Ghulam Rasool in Crl.Appeal No.66013 of 2025).

Complainant by: Mr. Muhammad Zubair Khalid Chaudhry, Advocate.

State by: Rana Muhammad Asif Iqbal, Assistant District Public Prosecutor.

ABHER GUL KHAN, J. The appellants Jafar alias Zafar & Ghulam Rasool along with co-accused, namely Khadim Hussain, Bashir Ahmed, Wajid Ali, Muftaba, Murad, Ajmal, Rashid, Tayyab, Sarfraz, Muhammad Asghar, Abid, Latif, Muhammad Ashraf, Abdul Rashid, Muhammad Shafi, Munir and Khizar Hayat were tried by Additional Sessions Judge, Pakpattan in private complaint titled **Hafiz Muhammad Ishaq v. Jaffar alias Zafar & 18 others** for the offences under Sections 506-B, 412, 395, 334, 364-A, 355, 363, 148 & 149 PPC with regard to an occurrence which took place within the territorial jurisdiction of Police Station Chakbedi, Pakpattan. The afore-said private complaint emanated from FIR No.208/2014 dated 20.06.2014 registered under Sections 334, 355, 363, 365, 395, 412, 506, 148 & 149 PPC at Police Station Chakbedi, Pakpattan. The trial

court upon culmination of trial in the complaint case *vide* judgment dated 16.10.2025 acquitted the afore-said co-accused, while convicted and sentenced the appellants in the following terms:-

Under Sections 336/34 PPC to suffer rigorous imprisonment for 10-years on two counts for chopping the noses of Ata Ullah and Abdullah. They were also directed to pay Rs.5,00,000/- each on two counts as Arsh to the aforesaid victims. Both the appellants, however were given the benefit of Section 382-B Cr.P.C.

Challenging their convictions and sentences, the appellants Jafar alias Zafar & Ghulam Rasool filed Criminal Appeal No.63502 of 2025 & Criminal Appeal No.66013 of 2025 respectively, while the complainant Hafiz Muhammad Ishaq (PW.1) filed Criminal Revision No.7019 of 2026 seeking enhancement of sentence awarded to the convicts/appellants and besides that he also filed Criminal PSLA No.7010 of 2026 against the acquittal of respondents, Jaffar alias Zafar, Khadim Hussain, Muhammad Shafi, Munir, Khizar Hayat, Abdul Rasheed, Bashir Ahmed, Ghulam Rasool, Wajid Ali, Mujtaba, Murad, Ajmal, Rashid, Nasir, Tayyab, Sarfraz, Muhammad Asghar, Abid, Latif and Muhammad Ashraf, from the charges under Sections 364-A, 363, 355, 395, 412, 506, 148 & 149 PPC. All these matters are being decided through this single judgment.

2. Succinctly stated, the prosecution case as set forth by the complainant Hafiz Muhammad Ishaq (PW.1) in FIR No.208/2014 (CW-1/D) is that on the intervening night of 19/20.06.2020, at about 12:30 a.m., while he and his family members were asleep at their *Dhari*, accused Mujtaba, Muhammad Bashir, Ghulam Rasool, Muhammad Zafar, Ajmal, Iqbal, Asghar Ali and 5/6 unknown accused, all armed with firearms and daggers arrived at the spot. The accused Muhammad Zafar raised a Lalkara exhorting that the noses of the sons of the complainant be severed. Thereupon, the accused overpowered Abdullah (PW.2) by holding his hands and legs, whereafter accused Muhammad Zafar inflicted a dagger blow and cut off his nose. Subsequently, the accused similarly caught another son of the complainant, namely Ata Ullah (PW.3), and accused Muhammad Zafar also severed his nose with a dagger. The remaining accused subjected Ubaidullah (PW.4) to physical violence, however upon his protest that he was not their brother they desisted from

further assault upon him. On hearing the hue and cries of the complainant and others, Haroon and Muhammad Naeem reached the place of occurrence but the accused threatened them if anybody came near he would be done to death. The accused tied the complainant and the remaining witnesses, and thereafter took Abdullah (PW.2) and Ata Ullah (PW.3) towards the other side of the canal. However, owing to the intervention of the witnesses and other persons who had gathered at the spot the accused abandoned their design, released the victims and fled away from the crime scene.

3. On 20.06.2014 Asfhaq Ahmad, 349/HC (CW.1) on the basis of rapat (Exh.CW.1/A) got entered on the statement made by the complainant, Muhammad Ishaq (PW.1) formally recorded the FIR (Exh.CW.1/D). The investigation of the case was subsequently entrusted to Zaman Rasheed, SI (CW.2) who on the same day visited the place of occurrence, secured blood-stained earth vide recovery memo (Exh.CW.2/A) and prepared a rough site plan of the place of occurrence (Exh.CW.2/B). On 20.06.2014 the complainant submitted an application (Exh.CW.2/C) wherein four persons were nominated as accused. During the course of investigation, the appellant, Jaffar alias Zafar, was arrested on 27.06.2014. On 07.07.2014, while in police custody, he made a disclosure and in consequence thereof led to the recovery of a Nokia mobile phone (P.5) which was taken into possession through recovery memo (Exh.CW.2/E). On 10.07.2014 the appellant Jaffar alias Zafar again made a disclosure and got recovered a Chhurri (P.6), which was secured vide recovery memo (Exh.CW.2/H). The Investigating Officer further conducted investigation regarding the involvement of the remaining nominated accused and ultimately found that only accused Jaffar alias Zafar, Iqbal son of Nawaz, Iqbal son of Sajwar and Niaz were involved in the occurrence. The investigation was later conducted by Arshad Ali Inspector/DIB (CW.5) who on 16.12.2014 summoned both sides, recorded their respective versions, inspected the place of occurrence,

interrogated the appellants, and verified the investigation conducted by the local police.

4. Feeling aggrieved by the manner in which the matter was investigated by the police, the complainant Muhammad Ishaq (PW.1) instituted the private complaint (Exh.PB), whereupon the trial was held. In order to substantiate the accusations levelled therein, the prosecution produced four witnesses, namely, Muhammad Ishaq (PW.1) appeared as the complainant, whereas Abdullah (PW.2), Ata Ullah (PW.3) and Ubaidullah (PW.4) furnished ocular account of the occurrence. The learned trial Court also examined six Court Witnesses. Amongst them, Zaman Rasheed, SI (CW.2) and Arshad Ali, Inspector (CW.5), had conducted the investigation of the case. Dr. Ajmal Shahzad (CW.6) appeared and produced the medico-legal certificates (Exh.CW.6/A and Exh.CW.6/B), which revealed that the medico-legal examinations of Ata Ullah (PW.3) and Abdullah (PW.2) had earlier been conducted by Dr.Ahmad Hassan, who had suffered a heart attack and thus was not produced before the Court. Upon conclusion of the prosecution evidence, the statements of the appellants, namely Jaffar alias Zafar and Ghulam Rasool, along with their co-accused, were recorded under Section 342, Cr.P.C., wherein every incriminating circumstance appearing in the prosecution evidence was put to them. They denied the allegations, professed innocence and asserted false implication. The appellants did not avail the opportunity of making statements on oath in terms of Section 340(2), Cr.P.C, however appellant Jaffar alias Zafar tendered certain documents in his defence. After hearing the learned counsel for the parties and evaluating the evidence brought on the record, the learned trial Court found the appellants guilty of the charges, convicted and sentenced them accordingly, hence the instant criminal appeals, criminal revision petition and criminal petition seeking leave to appeal.

5. Arguments heard. Record perused.

6. The careful perusal of the record reveals that the prosecution case stems from an occurrence which allegedly took place in the intervening night of 19/20.06.2014 at about 12:30 a.m. in Chak No.46/SP, situated at a distance of approximately 8.5 kilometres from Police Station Chakbedi, District Pakpattan Sharif. According to the prosecution version as reflected in the FIR (Exh.CW.1/D), the appellants, accompanied by their co-accused namely Mujtaba, Muhammad Bashir, Ajmal, Iqbal, Asghar Ali and five/six accused all allegedly armed with firearms and daggers, forcibly entered the Dhari of the complainant, Hafiz Muhammad Ishaq (PW.1), where he, along with Abdullah (PW.2), Ata Ullah (PW.3) and Ubaidullah (PW.4), was asleep. According to prosecution case, the co-accused overpowered Abdullah and Ata Ullah by holding their hands and legs, whereafter appellant Jaffar alias Zafar inflicted injuries with a dagger and severed their noses. The record further discloses that information regarding the occurrence was conveyed to the police on 20.06.2014 at about 6:20 a.m. when Hafiz Muhammad Ishaq (PW.1) got entered a Rapt and on its basis Ashfaq Ahmad, 349/HC (CW.1) registered formal FIR (Exh.CW.1/D). The investigation was thereafter undertaken by Zaman Rasheed, SI (CW.2) who upon completion of the probe, concluded that only appellant Jaffar alias Zafar, Iqbal son of Nawaz, Iqbal son of Sajwar and Niaz were involved in the occurrence, while the remaining nominated accused were found innocent. The said conclusion was subsequently verified by Arshad Ali, Inspector/DIB (CW.5). Not being satisfied with the outcome of the police investigation, the complainant instituted a private complaint (Exh.PB) against the appellants and eighteen other persons. Consequently, nineteen accused were sent to face trial. Upon conclusion of the proceedings, sixteen accused were acquitted, however only the appellants are in receipt of guilty verdict from trial Court.

7. Before advertng to the merits of the case, it may be observed that the allegations levelled against the appellants are undoubtedly grave in nature, inasmuch as they are alleged to have severed the

noses of Abdullah (PW.2) and Ata Ullah (PW.3). Nevertheless, it is by now a well-settled principle of criminal jurisprudence that criminal liability is to be determined on the basis of legally admissible and trustworthy evidence and not on the basis of sentiments or the heinousness of the allegation. Keeping this cardinal principle in view, I have made a careful scrutiny of the entire record. The complainant Hafiz Muhammad Ishaq (PW.1) along with Abdullah (PW.2), Ata Ullah (PW.3) and Ubaidullah (PW.4) appeared before the learned trial Court as eyewitnesses of the occurrence. Their stance was that the appellants, namely Jaffar alias Zafar and Ghulam Rasool, inflicted dagger blows and severed the noses of Abdullah (PW.2) and Ata Ullah (PW.3). At the very outset, it would be advantageous to examine the testimony of the complainant Hafiz Muhammad Ishaq (PW.1). A perusal of the FIR, the private complaint, and the statement made by the complainant before the trial Court gives an impression that he was an eyewitness of the occurrence and that the entire incident occurred in his presence. However, a careful and circumspect scrutiny of the record reveals otherwise and the complainant Hafiz Muhammad Ishaq (PW.1) does not appear to be an eyewitness of the occurrence. This conclusion finds ample support from the cross-examination of the purported eyewitness Ubaidullah (PW.4) who candidly admitted that after the appellants had severed the noses of both injured he raised hue and cry whereupon his father and some other persons arrived at the spot and he narrated the entire occurrence to them. This admission unambiguously suggests that the complainant reached the place of occurrence only after the incident had already taken place and was informed thereof by Ubaidullah (PW.4). Since this aspect is of significant importance, the relevant portion of the cross-examination of Ubaidullah (PW.4) is reproduced hereunder:-

“I raised hue and cry upon which my father and some other people came there and I narrated all the story afore-mentioned to them.”

Similarly, injured witness Abdullah (PW.2) admitted during cross-examination that in his written police statement (Exh.DA) he had not

mentioned the presence of the complainant Hafiz Muhammad Ishaq (PW.1) at the time of occurrence. The exact words pronounced by Abdullah (PW.2) read as under:-

“I submitted my written statement Ex.DA before the police. In Ex.DA I have not mentioned the presence of my father i.e. complainant at the time of occurrence.”

Another circumstance lending support to the conclusion that the complainant Hafiz Muhammad Ishaq (PW.1) was not present at the place of occurrence is that in the private complaint itself he categorically averred that the details of the incident had been narrated to him by his injured sons, namely Abdullah (PW.2) and Ata Ullah (PW.3). This assertion unequivocally indicates that his knowledge of the occurrence was derived from what was conveyed to him by the injured witnesses and not from his own direct observation of the event. In the circumstances discussed above, the testimony of the complainant, Hafiz Muhammad Ishaq (PW.1) is rendered unworthy of reliance and, therefore, stands excluded from consideration. When the complainant is found not to be an eyewitness of the occurrence, the prosecution narrative as set out in the FIR, in the private complaint and subsequently projected during the trial becomes seriously doubtful and loses much of its evidentiary force. It is, however, evident from the medico-legal certificates of the injured namely Abdullah (PW.2) and Ata Ullah (PW.3), that both had sustained partial avulsion of their noses. However, the mere presence of injuries on the person of a witness is not by itself sufficient to establish the veracity of the prosecution case. The testimony of an injured witness, though carrying its own significance, is not immune from judicial scrutiny and must be evaluated in the light of the settled principles governing the appreciation of evidence in criminal cases. It is by now well-settled that conviction cannot be founded merely on the statement of an injured witness, rather his testimony must inspire confidence, remain free from material discrepancies, and successfully withstand the test of careful and cautious scrutiny. Therefore, in the peculiar facts and circumstances of the present case, it would be

highly unsafe to maintain the conviction solely on the basis of the statements of the injured witnesses unless the same are found to be wholly trustworthy and receive corroboration from the surrounding circumstances appearing on the record. Reliance is placed upon the case reported as Amin Ali v. The State (2011 SCMR 323) wherein the Supreme Court of Pakistan observed as under:-

“Certainly, the presence of injured witnesses cannot be doubted at the place of incident, but the question is as to whether they are truthful witnesses or otherwise, because merely the injuries on the person of P.Ws. would not stamp them truthful witnesses.”

In another case reported as Nazir Ahmad v. Muhammad Iqbal and another (2011 SCMR 527), the Supreme Court of Pakistan while examining the case of an injured witness held as under:-

“It is settled law that injuries of PWs are only indication of his presence at the spot but are not affirmative proof of his credibility and truth. See Said Ahmed’s case (1981 SCMR 795) and Muhammad Pervez’s case (2007 SCMR 670).”

In the light of the foregoing observations, this Court has minutely examined the record and is of the considered view that the statements of the alleged injured witnesses, namely Ata Ullah (PW.3) and Abdullah (PW.2) do not inspire confidence and are not worthy of reliance for the purpose of sustaining the convictions of the appellants. For arriving at a just conclusion, I have carefully examined the medico-legal certificates of Ata Ullah (PW.3) and Abdullah (PW.2), exhibited as Exh.CW.6/A and Exh.CW.6/B. A perusal thereof reveals that both injured were brought to RHC, Bunga Hayat, on 20.06.2014 at about 3:00 a.m. by Husnain Muhammad 907/C. This circumstance indicates that the injured reached the hospital approximately two and a half hours after the alleged occurrence. However, the record is completely silent regarding the mode of conveyance through which they were transported to the hospital. Another aspect which cannot be lost sight of is that the mention of Husnain Muhammad 907/C in the medico-legal certificates suggests that the matter had already come to the notice of the police by the time the injured were brought for medical examination. Despite such knowledge, no prompt FIR was chalked out. The occurrence is alleged

to have taken place at about 12:30 a.m., whereas the injured were medically examined at 3:00 a.m., yet the prosecution has offered no explanation regarding the whereabouts of the injured during this period of more than two and half hours. A further noteworthy circumstance emerges from the histories recorded in the medico-legal certificates. According to Exh.CW.6/A, injured Ata Ullah described the occurrence as an attack at field, whereas Abdullah, in Exh.CW.6/B, narrated it as a fight in the outfall crops/fields. However, none of the injured disclosed the identity of any assailant or named the persons allegedly responsible for causing the injuries. Dr.Ajmal Shahzad (CW.6), during cross-examination, candidly admitted that the names of the accused do not find mention in the column relating to the brief history of the occurrence. I have also noticed another significant omission, according to which the medico-legal certificates reveal that Dr.Ahmad Hassan who conducted the initial examination of the injured referred them to DHQ Hospital, Pakpattan. However, neither any medical officer from the said hospital was produced during trial nor any document from the hospital record was brought on the record to establish that the injured were in fact referred thereto or subsequently examined there. The withholding of such material evidence which was readily available to the prosecution, assumes considerable significance and adversely affects the credibility of the prosecution case.

I have also observed that the occurrence admittedly took place during the night intervening between 19/20.06.2014. The medico-legal certificates (Exh.CW.6/A and Exh.CW.6/B) reveal that both the injured witnesses, namely Abdullah (PW.2) and Ata Ullah (PW.3), were brought to the hospital at about 3:00 a.m. on 20.06.2014 by Husnain Muhammad 907/C. Despite the fact that both injured witnesses were medically examined immediately after the occurrence, their statements before the police (Exh.DA and Exh.DE) were recorded with considerable delay. Although Abdullah (PW.2) during cross-examination expressed his inability to recall the exact date on

which he submitted his written statement to the police, yet Ata Ullah (PW.3) categorically stated that he and his brother remained admitted in a hospital at Lahore for about ten days after the occurrence and that their father subsequently made a statement to the police on their behalf. It is pertinent to note that Dr.Ahmad Hassan who prepared the medico-legal certificates was not produced before the trial Court. However, Dr.Ajmal Shahzad (CW.6) who appeared on his behalf conceded during cross-examination that the brief history recorded in a medico-legal certificate is ordinarily based upon the narration furnished by the injured person. Since the medico-legal reports in the instant case contain the brief history of the occurrence attributed to the injured witnesses themselves, a legitimate inference arises that both Abdullah (PW.2) and Ata Ullah (PW.3) were conscious and capable of making statements at the relevant time. Similarly, no serious effort on part of the investigating officers was made to record the statements of both the injured promptly. In these circumstances, the unexplained delay in recording their statements by the police lends credence to the defence plea that the prosecution version was subsequently deliberated and improved through consultation. Another factor which merits consideration is that both Abdullah (PW.2) and Ata Ullah (PW.3) in examination-in-chief alleged that co-accused Abid, Abdul Rasheed, Muhammad Shafi and Khizar had subjected them to fist and kick blows, forcibly abducted them, dragged them to the fields of accused Bashir Wattoo, removed their clothes and humiliated them. Had such allegations been true, it would reasonably be expected that the injured witnesses would have sustained multiple injuries on various parts of their bodies. Contrary thereto, the medical evidence is completely silent regarding any such injuries and mentions only partial avulsion of the noses of both injured witnesses. The absence of corresponding injuries on their bodies materially undermines the prosecution claim that they were beaten, dragged and forcibly taken away by the accused. Moreover, Abdullah (PW.2) stated that upon regaining consciousness at Jinnah Hospital, Lahore he found himself

wearing the same clothes which he had worn at the time of the occurrence. He, however, professed ignorance as to whether the accused had taken away those clothes after allegedly removing them or whether the same accompanied him to the hospital. The prosecution evidence is entirely silent as to who subsequently clothed the injured witnesses. This glaring omission constitutes yet another circumstance which detracts from the veracity of the prosecution story.

The accumulative effect of the narration of facts mentioned hereinabove is that the matter has not been presented before the Court in its true perspective. Consequently, the ocular account furnished by the prosecution witnesses cannot be accepted at its face value without independent corroboration and is not free from doubt.

8. The perusal of the record also discloses a material inconsistency in the prosecution case regarding the attribution of the injuries in question. Initially the FIR (Exh.CW.1/D) which was recorded by Ashfaq Ahmad, 349/HC (CW.1) on the basis of Rapt No.20 dated 20.06.2014 entered at 6:20 a.m., specifically alleged that appellant Jaffar alias Zafar alone had severed the noses of both injured. However, while instituting the private complaint (Exh.PB) and subsequently while appearing before the learned trial Court, the complainant as well as the other eyewitnesses, including the injured themselves, materially improved upon and departed from the earlier version by asserting that appellant Jaffar alias Zafar had cut the nose of Abdullah (PW.2), whereas appellant Ghulam Rasool had severed the nose of Ata Ullah (PW.3). This departure from the earlier version of the occurrence assumes considerable significance, particularly in view of the settled principle that the first account of an incident ordinarily carries greater evidentiary value than subsequent improvements introduced during the course of trial. It is also pertinent to note that Ashfaq Ahmad, 349/HC (CW.1), while appearing before the Court deposed that for the registration of an FIR it is a legal and procedural requirement that the complainant's thumb impression or

signature be obtained on the relevant documents, including the FIR, the application, the fard-bayan and the rapat. He, however, admitted that in the present case neither the signatures nor the thumb impression of the complainant were obtained on the relevant documents at the time of registration of the case. On the other hand, Zaman Rasheed, SI (CW.2) while being cross-examined, stated that the mobile phone number of the complainant had been mentioned in the Rapt (Exh.CW.1/A). He further maintained that the signatures of the complainant were available on the daily diary register of the police station and that the signatures appearing on application Exh.CW.2/C corresponded with those available in the said register. This aspect of the matter assumes importance in the peculiar facts and circumstances of the case and therefore the relevant portion of the cross-examination of Zaman Rasheed, SI (CW.2), is reproduced hereunder:-

“The mobile number of complainant is mentioned on Rapt Exh.CW.1/a. The signatures of complainant were available on the daily diary register of the police station. “The signatures of the complainant present on the application Exh.CW.2/C were familiar with the signatures of complainant on daily diary register.”

The afore-referred portion of the cross-examination of the Investigating Officer leaves no room for doubt that the stance subsequently adopted by the complainant that the contents of the FIR (Exh.CW.1/D) were incorrect and that the same had been drafted by the police of their own accord without associating him, is wholly untenable and stands effectively discredited. Zaman Rasheed, SI (CW.2), while being subjected to cross-examination, candidly admitted that it was the complainant himself who had stated before him that although he initially entertained doubts regarding the involvement of the accused named therein, he had subsequently become satisfied about their participation in the occurrence. The said position further finds corroboration from the testimony of Ubaidullah (PW.4), who reaffirmed his earlier statement and deposed that on 11.08.2014 he had not been able to properly identify the accused at the time of the occurrence because the accused had apprehended the three brothers while they were asleep and thereafter taken them to the

place of occurrence. Similar was the deposition made by Abdullah (PW.2) and Ata Ullah (PW.3). Ata Ullah further explained that owing to darkness prevailing at the relevant time, proper identification of the accused was not possible. Since the foregoing aspect goes to the very root of the matter and bears significant relevance to the controversy involved, it would be advantageous to reproduce verbatim hereinbelow the relevant portion of the cross-examination of Zaman Rasheed, SI (CW.2):-

“It was the statement of the complainant that he had doubts regarding involvement of the afore-mentioned accused and now he was satisfied about their involvements. PW Ubaid Ullah verified his previous statement and stated that on 11.08.2014 I had not identified the accused persons properly at the time of occurrence because accused persons apprehended us when we three brothers were sleeping and took us at the place of occurrence. Same was the same of Abdullah and Ata Ullah PWs. Ata Ullah further stated that due to darkness we did not identify the accused properly.”

Furthermore, the assertion advanced by the complainant that the FIR was the product of collusion between the local police and the accused is belied by the record itself. It is an admitted position that the complainant had approached the learned Ex-officio Justice of Peace by filing an application under Sections 22-A and 22-B, Cr.P.C. (Exh.CW.2/N), seeking a direction for registration of a second FIR on the basis of application (Exh.CW.2/C). The said application, however, was dismissed after due consideration. Dissatisfied therewith, the complainant invoked the constitutional jurisdiction of the Lahore High Court by filing a writ petition challenging the order of the Ex-officio Justice of Peace, but the said petition also failed and was dismissed. The aforementioned circumstances demonstrate that the complainant had exhausted the available legal remedies for securing registration of a fresh case in terms of his own version of events, yet remained unsuccessful at every forum. Consequently, there remains little room for doubt that upon becoming dissatisfied with the outcome of the investigation conducted in the FIR already registered, the complainant opted to institute the private complaint (Exh.PB) with a view to

introduce his preferred version and implicating a large number of persons than those found involved during the course of investigation.

9. It has further been observed from the record that appellant Jafar alias Zafar was arrested on 27.06.2014 and during the course of investigation allegedly made a disclosure before Zaman Rasheed, SI (CW.2) on 10.07.2014, pursuant where to a blood-stained chhurra/dagger (C.6) was recovered and secured through recovery memo Exh.CW.2/H. At this juncture, it would be pertinent to observe that if the prosecution intended to derive corroborative value from the aforesaid recovery, it was incumbent upon it to have secured forensic evidence establishing a nexus between the alleged weapon of offence and the crime. An endeavour ought to have been made by the prosecution to obtain the blood grouping of the stains found on the recovered dagger and to compare the same with the blood-stained earth collected from the place of occurrence, so as to demonstrate that both originated from the same source. Such a course was essential to satisfy the settled canon of criminal jurisprudence that the prosecution is required to prove every constituent element of its case beyond reasonable doubt. In the absence of such scientific corroboration, the evidentiary worth of the alleged recovery of dagger is considerably diminished, and I am not persuaded to attach any substantial significance thereto.

10. Apart from the above, it is noteworthy that while lodging the FIR, the complainant (PW.1) did not allege any motive for the occurrence. However, in the private complaint (Exh.PB), a motive was subsequently introduced to the effect that on 05.09.2013 the accused had abducted Ata Ullah and Waqas, the son and nephew of the complainant respectively, from their school, subjected them to maltreatment and humiliation, and that Jabar and Zahoor had caused firearm injuries, in respect whereof FIR No.383/2013 had been registered at the instance of Haroon. A careful examination of the record reveals that the occurrence forming the subject matter of FIR No.383/2013 had taken place on 06.09.2013, whereas the incident in

question occurred on 21.06.2014, nearly nine months thereafter. However, throughout the intervening period no untoward incident or overt act on the part of either side has been brought on record. This circumstance materially detracts from the probative force of the alleged motive. It scarcely needs reiteration that motive occupies a peculiar position in criminal jurisprudence. While in appropriate cases, it may furnish corroboration to the prosecution version and is equally capable of providing a basis for false implication. For this very reason, motive has consistently been regarded by the superior courts as a double-edged weapon, the evidentiary value whereof must be assessed with utmost caution and circumspection in the peculiar facts and circumstances of each case. Reliance is placed upon the case reported as Muhammad Ashraf alias Acchu v. The State (2019 SCMR 652), wherein the Supreme Court of Pakistan held as under:-

“The motive is always a double-edged weapon. The complainant Sultan Ahmad (PW9) has admitted murder enmity between the parties and has also given details of the same in his statement recorded before the trial court. No doubt, previous enmity can be a reason for the appellant to commit the alleged crime, but it can equally be a reason for the complainant side to falsely implicate the appellant in this case for previous grouse.”

11. For what has been discussed above, I am persuaded to hold that the prosecution has miserably failed to establish the guilt of the appellants beyond reasonable doubt. It is by now a settled principle of criminal jurisprudence that where a single circumstance creates a reasonable doubt in the mind of a prudent person regarding the guilt of an accused, the benefit of such doubt is to be extended to the accused as a matter of right and not of grace or concession. The record of the present case is replete with infirmities and circumstances giving rise to serious doubts about the veracity of the prosecution version, thereby entitling the appellants to the benefit thereof. Consequently, **Criminal Appeal No.63502 of 2025** and **Criminal Appeal No.66013 of 2025** preferred by appellants Jafar alias Zafar and Ghulam Rasool are allowed. The convictions and sentences awarded to the said appellants by the trial Court are hereby set aside and they are acquitted of the charges by extending them the benefit of doubt. The

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appellants in custody shall be released forthwith unless required to be detained in connection with any other case. As a necessary corollary, **Criminal Revision No.7019 of 2026** seeking enhancement of sentence of respondents No.1 and 2, namely Jafar alias Zafar and Ghulam Rasool, is devoid of merit and is accordingly dismissed.

12. For the foregoing reasons, **Criminal PSLA No.7010 of 2026** against the acquittal of respondents also has no force and is hereby dismissed.

(ABHER GUL KHAN)
JUDGE

APPROVED FOR REPORTING

JUDGE

The judgment was announced
on 11.06.2026, dictated, prepared,
and signed on 16.06.2026
Najum*